

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, MAY 30, 2025**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**JOHN BAEZ and LOREN HADASSAH v. HOMEGUARD INCORPORATED, MONICA HICKS, and JOEL BENSON
Case No. FCS058890**

BUYERS' Motion for Summary Judgment Re: SELLERS' Complaint

TENTATIVE RULING

Defendants MONICA HICKS and JOEL BENSON (together "BUYERS") move for summary judgment against Plaintiffs JOHN BAEZ and LOREN HADASSAH's (together "SELLERS") complaint alleging breach of contract, breach of the implied covenant of good faith and fair dealing, negligence, and nuisance. Summarized as is relevant, SELLERS' complaint alleges that the parties contracted for the sale of SELLERS' house (the "Property"). Inspection of the Property revealed termite and fungus damage that BUYERS arranged for Defendant HOMEGUARD INCORPORATED ("HOMEGUARD") to repair. HOMEGUARD did poor work and eventually stopped mid-project, leaving the Property exposed to the elements. BUYERS then backed out of the deal.

Objections to Evidence. In ruling on a motion for summary adjudication the court need only rule on those evidentiary objections that it deems material to its disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

BUYERS object to the Declaration of JOHN BAEZ at paragraph 33 where JOHN BAEZ relays statements BUYERS made at the close of the second mediation of this action. BUYERS' statements made during mediation are confidential and not admissible evidence per Evidence Code section 1119. BUYERS' objection is sustained.

BUYERS' remaining objections are not material to the disposition of the motion.

Legal Standard. A defendant may move for summary judgment on the basis that the plaintiff cannot establish an element of his cause of action. (Code Civ. Proc., § 437c, subd. (o)(1).) A summary judgment motion is properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp.* (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid.*) The affidavits of the moving party are strictly construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Ibid.*) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary judgment, provided they contain admissible evidence. (Code Civ. Proc., §§ 437c, subds. (b)(1), (d).) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker, supra*, 3 Cal.3d at p. 181.) Additionally, a defendant does not meet its burden of showing a plaintiff cannot establish an element merely by pointing out the absence of evidence; the defendant must show that the plaintiff both does not possess and cannot reasonably obtain evidence. (*Zipusch v. LA Workout, Inc.* (2007) 155 Cal.App.4th 1281, 1286-1287.)

Breach of Contract. To prevail on a cause of action for breach of contract a plaintiff must prove (1) the existence of a lawful contract, (2) his performance or excuse for nonperformance, (3) the defendant's breach, and (4) resulting damages. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

BUYERS present undisputed facts that the contract for sale of the Property required SELLERS to disclose all known material facts and defects affecting the Property. (UMF #2-3.) They present undisputed facts that SELLERS knew the Property had been dilapidated and in receivership but never told BUYERS. (UMF #8-12, 16.) They also present undisputed facts that SELLERS became aware of issues with the Property's foundation during the pendency of the sale but did not inform BUYERS. (UMF #23-24, 26-29.) However, the materiality of undisclosed information is generally a question of fact. (*Calemine v. Samuelson* (2009) 171 Cal.App.4th 153, 161.) BUYERS observe that Civil Code section 1102.6 requires real property sellers to disclose lawsuits involving the sellers concerning the property but that requirement concerns lawsuits involving the *sellers*; the abatement action here did not involve SELLERS. There is a triable issue of fact as to whether SELLERS failed to perform their obligations under the contract and so excused BUYERS' nonperformance.

Breach of the Implied Covenant of Good Faith and Fair Dealing. To prove breach of the implied covenant of good faith and fair dealing a plaintiff must show that the defendant engaged in conduct which frustrated the plaintiff's right to the benefits of a

contract between them. (*Ojeh v. Brown* (2019) 43 Cal.App.5th 1027, 1037.) Per the above, there is a triable issue of fact as to whether SELLERS had a right to the benefits of the sale contract.

Negligence. The elements of a cause of action for negligence are (1) duty, (2) breach, (3) causation, and (4) damages. (*Roe v. Hesperia Unified School District* (2022) 85 Cal.App.5th 13, 24-25.) BUYERS' undisputed facts negate SELLERS' ability to prove that BUYERS owed SELLERS a duty of care or breached a duty of care to SELLERS. BUYERS never had possession or control of the Property. (UMF #31.) HOMEGUARD is a licensed contractor. (UMF #32-33.) HOMEGUARD was not BUYERS' agent, employee, or partner. (UMF #34.) HOMEGUARD was hired to do termite damage repair at the Property; BUYERS did not perform termite damage repair. (UMF #35-36.) All of this indicates that HOMEGUARD was solely responsible for HOMEGUARD's work on the Property. BUYERS are not responsible for the negligent work of an independent contractor. (*Privette v. Superior Court* (1993) 5 Cal.4th 689, 693-694.) SELLERS raise no triable issue of material fact in response.

Nuisance. A private nuisance claim is one for nontrespassory interference with private use and enjoyment of land. (*Wilson v. Southern California Edison Co.* (2018) 21 Cal.App.5th 786, 802.) It requires proof of three elements: (1) an interference with the plaintiff's use and enjoyment of real property, (2) that the invasion of the plaintiff's interests was substantial, meaning that a normal person in the locality would be substantially annoyed or disturbed, and (3) that the invasion of the plaintiff's interests was unreasonable, typically meaning that the social utility of the invasion does not outweigh the harm to the plaintiff. (*Id.* at pp. 802-803.) A plaintiff may not claim nuisance due to activity to which he consented. (CACI 2021.) BUYERS' undisputed facts show that they did not interfere with SELLERS' use of the Property. To the extent HOMEGUARD interfered with SELLERS' use of the Property by its repair work, SELLERS consented to HOMEGUARD's activities. (UMF #35-36, 45-47.) SELLERS again raise no triable issue of material fact in response.

Conclusion. The court treats BUYERS' motion for summary judgment as a motion for summary adjudication. Summary adjudication is granted on SELLERS' causes of action for negligence and nuisance. BUYERS' motion is otherwise denied.

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